



TLD Group

TLD 集团

Code of Ethics and Business Conduct

商业道德和商业行为守则

PREAMBLE

序言

TLD is committed to conducting its business with honesty and integrity and in accordance with high legal and ethical standards. This Code is designed to provide guidance on TLD ethical principles, to all Employees, Officers and Members of the Board of Directors of TLD and all its affiliated companies.

TLD 集团本着诚信、公正，严格遵循法律、法规和商业道德标准的原则开展其业务。本守则旨在为 TLD 和所有附属公司的雇员、高级职员和董事会成员提供商业道德标准规范。

The Code is not a comprehensive manual and does not cover every situation that might be encountered. Nevertheless, it provides guidance for specific situations that may arise. It is your responsibility to comply with this Code and to exercise good judgment so as to act in a manner that will reflect favorably upon TLD and you. You should seek to comply with the spirit as well as the letter of this Code. You may not attempt to achieve indirectly, through the use of third parties (like agents or other intermediaries), acts that are prohibited directly by the Code. There are no acceptable reasons for violating the Code. Violations of law, regulations, or this Code will make you subject to disciplinary action.

本守则不是一个全面的手册，并没有涵盖所有可能遇到的情况，但针对可能出现的具体情况提供了指导。每个成员都有责任遵守本守则，并运用良好的判断力，以对公司及个人有利的方式行事，努力遵守本守则精神及其具体内容。不可以企图透过第三者（如代理人或其它中间人）间接进行违反本守则明文禁止的行为。违反本守则的任何理由都不予接受。违反法律、法规或本守则将受到相应的纪律处分。

This Code does not include all of TLD's policies on ethical or legal matters; you are responsible for knowing all other TLD policies and laws applicable to your position. TLD and its Directors and



Employees must in particular endeavor to comply with all applicable legal requirements in all countries in which TLD operates or holds assets.

本守则没有包括 TLD 集团对商业道德或法律事务的所有政策。每个成员都有责任知道适用于自己职位的所有相关政策及法规。TLD 集团、其董事及雇员更必须努力遵守 TLD 经营所在地或持有资产的国家所适用的法律、法规。

This Code is not an employment contract and nothing contained in this Code should be construed as a guarantee of continued employment. Compliance with the Code is, however, a condition to your continued employment or position on the Board. The requirements of this Code are in addition to any others contained in any other agreement you may have with TLD.

本守则不是劳工合同，其任何内容不得解释为继续雇用的保证。但是，是否遵守本守则是继续劳工合同或董事会职位的条件之一。本守则所规定的要求是个人和 TLD 其它任何协议的补充。

The TLD Group Steering Committee maintains policies and procedures which are set forth in this Code, which effective September 1st 2009, supersedes all previous Codes of Conduct, and remains in effect subject to any amendments. TLD, at its sole discretion, may change, modify, or otherwise alter this Code at any time. The Code is posted on the TLD Intranet Site (www.tld-gse.com/en/private) in the Corporate section and is available to any third party free of charge by writing to:

TLD Group
Parc Tertiaire Silic
21, rue du Jura – BP 10525
94633 RUNGIS Cedex
France

TLD 集团指导委员会决定本守则的制定政策及流程。本守则自 2009 年 9 月 1 日起生效，取代以前所有的行为守则，持续有效并可随时作出修订。TLD 集团可酌情在任何时候更改、修订或重新制定本守则。本守则公布在 TLD 内联网站（www.tld-gse.com/en/private）上的“公司”一栏，任何人均可写信到下列地址免费索取：

TLD Group
Parc Tertiaire Silic
21, rue du Jura – BP 10525
94633 RUNGIS Cedex
France

or by calling any TLD regional headquarters. Any amendment of the Code will be promptly posted on the Intranet Site.

或致电 TLD 各区域总部索取。任何关于本守则的修订都会及时地在公司内联网站公布。



DEFINITIONS

定义

The following terms, as used in this Code, are defined as follows:

以下术语在本守则中使用的定义如下：

“Code” means TLD’s Code of Ethics and Business Conduct.

“守则”是指 TLD 的商业道德和商业行为守则。

“Company” means TLD Group or the TLD affiliated company which employs the Employee, Officer or Director.

“本公司”是指聘用雇员、高级职员或董事的 TLD 集团或 TLD 附属公司。

“Director” means a Member of the Board of Directors of a TLD Company, and the President of French Société par Actions Simplifiée.

“董事”是指 TLD 公司的董事会成员，及法国 Société par Actions Simplifiée 的总裁。

“Employee” means an individual who is employed by a TLD Company, including all Officers and Directors.

“员工”是指被 TLD 公司聘用的个人，包括所有高级职员和董事。

“Ethics Committee” means all the members of the TLD Group Steering Committee and the Ethics Officers for TLD America, TLD Asia and TLD Europe, and the Committee Secretary.

“商业道德委员会”是指 TLD 集团指导委员会所有成员，和 TLD 美洲、TLD 亚洲和 TLD 欧洲的道德执行官及委员会秘书。

“Ethics Officers” for TLD America, TLD Asia and TLD Europe, mean the individuals designated by the TLD Group Steering Committee as Ethics Officers for those entities. Currently, the Ethics Officer for TLD America is Mark Garlasco; the Ethics Officer for TLD Asia Hong-Kong is Allen Fu; and for TLD Asia in P.R of China is Thomas Dorn, and the Ethics Officer for TLD Europe is Valentin Schmitt. The Committee Secretary is currently Jean-Jacques Vincent.

TLD 美洲、TLD 亚洲和 TLD 欧洲的“道德执行官”是指由 TLD 集团指导委员会任命的各机构的道德执行官。目前，TLD 美洲道德执行官是 Mark Garlasco；TLD 亚洲香港道德执行官是 Allen Fu；TLD 亚洲中国道德执行官是 Thomas Dorn；TLD 欧洲道德执行官是 Valentin Schmitt。委员会秘书目前是 Jean-Jacques Vincent。

“Government Contract” means a contract between a TLD Company and a Government or a



Government entity. In particular, for the United States of America, it means a contract between a TLD Company and the United States or an entity of the United States which is subject to the United States Federal Acquisition Regulations (“FAR”) and includes contracts wherein a TLD Company is considered a Government contractor under the FAR.

“政府合同”是指 TLD 与政府或政府机构之间签订的合同。以美国为例，它是指 TLD 与美国政府或受美国联邦采购法规（简称“FAR”）规管机构之间签订的合同，包括在美国联邦采购法规下视 TLD 为政府承包商之一的合同。

“Immediate Family Member” means any Employee’s or Director’s spouse, brother, sister, parents, children, step-children, father-in-law, mother-in-law, sister-in-law, brother-in-law, son-in-law, daughter-in-law, grandparent, and any other member of the Employee’s or Director’s household.

“直系家属”是指任何雇员或董事的配偶，兄弟，姐妹，父母，子女，继子女，公婆，岳父母，配偶的兄弟姊妹，女婿，儿媳，女儿，儿媳，祖父母，以及雇员或董事家庭的任何其他成员。

“Intranet Site” means the website accessible to TLD Employees at www.tld-gse.com/.

“内联网站”是指只供 TLD 员工登入的网站 www.tld-gse.com/。

“Officer” means a duly elected Officer of a TLD Company.

“主管”是指由 TLD 公司任命的主管。

“TLD” means TLD Group, and all its subsidiaries and affiliated companies.

“TLD”是指 TLD 集团及其所有分支和附属公司。

“TLD America” means the Companies of the TLD Group which are headquartered in North and South America, in Japan and includes in particular TLD (USA) Inc., TLD America Company, TLD ACE Company, TLD Lantis Company, TLD Canada and TLD Japan and all companies that would be created or acquired after the date hereof by any of the above-mentioned companies.

“TLD 美洲”是指总部设在北美，南美和日本的 TLD 集团附属公司，包括 TLD (USA) Inc.，TLD 美国公司，TLD ACE 公司，TLD Lantis 公司，TLD 加拿大和 TLD 日本，和将来由上述公司创建或收购的所有公司。

“TLD Asia” means the Companies of the TLD Group which are headquartered in Asia and includes TLD Asia (Hong Kong), TLD Asia (Shanghai), TLD Asia (Singapore), TLD Asia (Wuxi), and Joint Sourcing Team (Hong Kong) and all companies that would be created or acquired after the date hereof by any of the above-mentioned companies.

“TLD 亚洲”是指总部设在亚洲的 TLD 集团附属公司，包括 TLD 亚洲 (香港)，TLD 亚洲 (上海)，TLD 亚洲 (新加坡)，TLD 亚洲 (无锡)，Joint Sourcing Team (香港)，和将来由上述公司创建或收购的所有公司。



“TLD Europe” means the Companies of the TLD Group which are headquartered in Europe and in Middle East and includes in particular TLD Group, TLD Europe and TLD MEAL and all companies that would be created or acquired after the date hereof by any of the above-mentioned companies.

“TLD 欧洲”是指总部设在欧洲和中东的 TLD 集团附属公司，包括 TLD 集团，TLD 欧洲和 TLD MEAL 和将来由上述公司创建或收购的所有公司。

“TLD Group” means the company, organized under the laws of the Republic of France, which is the owner of the shares of the companies of TLD America, TLD Asia and TLD Europe.

“TLD 集团”是指依照法国法律成立的公司，是 TLD 美洲，TLD 亚洲和 TLD 欧洲的股份持有公司。

“TLD Group Steering Committee” currently means Jean-Marie Fulconis, Antoine Maguin, Mark Garlasco, Allen Fu, Thomas Dorn, Hervé Criqueillon, Valentin Schmitt, David Flahault and Mark Pollack.

“TLD 集团指导委员会”目前包括 Jean-Marie Fulconis, Antoine Maguin, Mark Garlasco, Allen Fu, Thomas Dorn, Hervé Criqueillon, Valentin Schmitt, David Flahault 和 Mark Pollack.

ETHICS POLICY

商业道德政策

The policy of TLD is for each TLD Company to comply with all governmental laws, rules and regulations applicable to the Company and its business.

TLD 政策是各 TLD 公司须遵守所有适用于本公司及其业务的政府法律、法规及规章。

TLD expects compliance with its standard of integrity throughout the organization and will not tolerate Employees who achieve results at the cost of violation of law or who deal unscrupulously. Each Company's Directors and Officers support, and expect the Company's Employees to support any Employee who passes up an opportunity or advantage that would sacrifice ethical standards.

TLD 期望公司自上而下遵守其道德标准，不允许员工为达到目的而违反法律或罔顾道德的行为。每位公司董事和高级职员支持并期望公司员工去支持任何员工为坚持商业道德而放弃某个机会或利益的行为。

We will obtain business legally and ethically and we wish to build long-term relationships with our customers and partners by demonstrating honesty and integrity. Our marketing and advertising will be accurate and truthful.



TLD 要通过合法、道德的途径来扩展业务。透过展示我们的诚信和正直，TLD 希望与客户及合作伙伴建立长远的合作关系；市场推广及广告要正确、诚实。

The Company cares how results are obtained, not just that they are obtained. Employees should deal fairly with each other and with the Company's suppliers, customers, competitors and other third parties. In particular, the practice followed for customer gifts, travel and entertainment will be defined by the management of each sales entity on clear and reasonable basis, according to TLD business ethical principles and the acceptable local practice, and will be communicated to the Employees on a regular basis.

公司不仅关心是否取得成果，更关心成果是如何取得的。员工应公平地对待彼此，公平地对待公司的供应商、客户、竞争者及其它第三方。对于给客户提供礼品、旅游及招待，各销售部门的管理层应根据 TLD 商业道德原则配和当地惯例，订出清晰合理的规定，并定期通知员工。

We will not do business with other parties who are likely to harm TLD's reputation. For example, we will avoid doing business with others whom we would know, or strongly suspect, to intentionally and continually violate the law. These laws include, for example, local environmental, employment, safety and anti-corruption statutes. For the United States of America, in particular, violations of law include any suspected violations of U.S. law involving fraud, conflict of interest, bribery, or gratuity violations found in Title 18 of the United States Code, or violations of the civil False Claims Act (Title 31 United States Code, §§ 3729-3733). All arrangements with third parties must comply with TLD procedures and the applicable laws. We will not use a third party to perform any act prohibited by law or by the TLD Group and local procedures.

TLD 不与可能损害集团声誉的对象交易。例如那些曾经或极有可能蓄意或持续触犯法例的人。这些法例包括，例如当地的环境保护，雇佣法，安全法和反商业贿赂法。在美国，尤指违反《美国法典》第 18 篇规定的包括涉及欺诈、利益冲突、贿赂，或不正当酬金等行为，或违反《虚假申报条例》（美国法典第 31 篇，§ § 3729-3733）的行为。所有与第三方的交易、合作都必须遵守 TLD 集团及当地的规章和法例。绝不允许利用第三方进行任何违反规章和法例的活动。

Whereas we acknowledge that the cooperation with agents, distributors and consultants is necessary and important in term of commercial action, marketing and customer support, we consider that commission rates or fees paid to dealers, distributors, agents, finders or consultants must be reasonable in relation to the value of the product or work that is actually being done, and consistent with law and local practice. The practice and procedures followed for such matters will be defined by the management of each TLD sales entity on clear and reasonable basis, and will be communicated to the Employees on a regular basis. We will not pay commissions or fees that we believe will become bribes.

与代理商、分销商、顾问公司合作从商业行为、市场推广、客户支持各方面来讲都有其必要性和重要性。我们为此支付的佣金或费用，须与所涉及产品的价值和其提供的服务成合理的比例并符合当地法例和惯例，绝对不能变成贿赂。对于这类佣金或费用的管理，各销售部门的管理层要按照 TLD 商业道德原则，订出清晰、合理的规定，定期通知内部成员。

It is the Company's policy that its books and records should accurately reflect its transactions in



reasonable detail and in accordance with its accounting practices and policies. TLD prohibits false or misleading entries in its books and records for any reason and will not condone any undisclosed or unrecorded bank accounts or assets. Employees are expected to record all transaction accurately in the Company's books and records, and to be honest and forthcoming with the Company's internal and external independent auditors. A contract's value must not be inflated, duplicated or made with the intention that any portion is to be used for any purpose other than what is described. All invoices must accurately reflect the products or services sold or leased at the true price and terms of sale. You must never generate an invoice with an inaccurate valuation to enable the purchasing/leasing party's ability to avoid duties, customs or other taxes. All falsification of books and records and creation or maintenance of any off-the-record bank accounts are strictly prohibited.

TLD 的政策规定账簿和记录应按照会计守则和政策的规定准确地反映合理的交易明细，禁止以任何理由在其账簿和记录上登录虚假或误导性的项目，也不容许存在任何未披露或无记录的银行账户或资产。员工应在公司账簿和记录上准确登录所有的交易；对公司内部和外部独立审计师，必须诚实并竭力提供协助。合同的交易额绝不允许夸大、复制或企图利用其部分金额达到非合同描述的任何目的。所有发票必须真实反映产品或服务出售或出租的真正金额和交易条款。绝不允许开具金额不准确的发票协助购买/承租方避免关税、海关或征税。严禁制造虚假账册，设立和维持无记录的银行账户均严格禁止。

The Company expects candor from Employees at all levels and adherence to its policies and internal controls. One harm which results when Employees conceal information from higher management or the auditors is that other Employees think they are being given a signal that the Company's policies and internal control can be ignored when they are inconvenient. That can result in corruption and demoralization of an organization. The Company's system of management will not work without honesty, including honest bookkeeping, honest budget proposals, and honest economic evaluation of projects.

公司期望各级员工的坦诚，并遵循公司政策和内部控制。员工向管理层或审计员隐瞒某些信息所造成的影响之一是向其它员工发出一种信号暗示公司政策和内部控制在某些情况下是可以忽略的，这样会造成内部腐败并影响士气。没有诚信公司的管理系统将无法运行，包括诚实地记账，提出诚实的预算，和对项目进行诚实的经济评估。

It is the Company's policy to make full, fair, accurate, timely, and understandable disclosure in reports and documents that the Company files with the public communications. All Employees are responsible for reporting material information known to them to higher management so that the information will be available to senior executives responsible for making disclosure decisions.

公司的政策是向公众披露全面、公正、准确和及时的报告与文件。所有员工都有责任向管理层汇报所知道的重要信息，以便管理层作出公开披露的决定。

CONFLICTS OF INTEREST POLICY

利益冲突政策



It is the policy of TLD that Directors, Officers and Employees are expected to avoid any actual or apparent conflict between their own personal interests and the interests of TLD.

TLD 期望董事，干部和雇员避免自己的个人利益与 TLD 利益发生实质或明显的利益冲突。

A conflict of interest occurs when your private interest interferes with the interests of TLD. This can arise when you take actions or have interests that make it difficult to perform your work objectively and effectively or when you or an Immediate Family Member receive improper personal benefits as a result of your position with TLD. You must disclose to the Ethics Committee all actual and potential conflicts of interest including any material transaction or relationship that reasonably could be expected to give rise to a conflict of interest.

当你的个人利益妨碍到 TLD 利益时就产生利益冲突。这可能会出现当你的某些行为或某些利益使你难以客观有效地完成某项工作时，或者你或你的直系家属由于你在 TLD 的职位而接受不正当私利时。你必须向商业道德委员会披露所有实际和潜在的利益冲突，包括任何足以导致利益冲突的重要交易或关系。

TLD can reserve the right to terminate or transfer you, in accordance with the local law, if you have a conflict of interest or require you to divest yourself of the interest as a condition of continued employment. In the case of a Director, TLD reserves the right remove you from the Board.

当员工与 TLD 发生利益冲突时，TLD 保留依据当地法律与员工终止合同或调职的权利，或者要求员工消除该利益作为继续聘用的条件。如果该成员是位董事，TLD 保留解除其董事会职务的权利。

The following are common examples of situations that may involve conflicts of interest:

以下列举几种常见的可能发生利益冲突的例子：

- **Moonlighting and Outside Interests**
- **关于兼职及公司以外业务利益**

TLD recognizes and respects your right to participate in outside activities of your choice. However, during your employment by or tenure with TLD, you may not knowingly, whether directly or indirectly, maintain any outside business, financial interest, directorship or activity that is in conflict with TLD's interests or activities. You may not engage in any activity or business that interferes with your ability to properly and fully discharge your duties at TLD. Directors must notify the Ethics Committee if they change employment.

TLD 认可并尊重员工选择参与公司以外活动的权利。但是，在受聘于 TLD 期间，不论直接或间接，员工不得蓄意地维持任何与 TLD 利益或业务有冲突的外部业务、经济利益、董事职位或其它活动。你不应参与任何干扰你在 TLD 妥善和充分履行职责的活动或业务。任何董事如果改变职业，必须通知商业道德委员会。



You are prohibited from selling your own products or services that are competitive to TLD and are prohibited from knowingly engaging in activities that enhance marketability or constitute support of a competitor's products or services.

禁止出售与 TLD 具有竞争性的产品或服务，或蓄意从事任何明知会加强或支持竞争对手产品或服务市场的活动。

- **Outside Business Relations with TLD Competitors, Customers, Vendors and Suppliers**
- **与 TLD 竞争对手，客户和供应商在职责之外的业务关系**

If yourself or any Immediate Family Member become directly or indirectly involved as an independent contractor or consultant to, any TLD competitor, customer, vendor or supplier, you must inform immediately the Company. You may not engage or participate, directly or indirectly, in the making of any significant decision on behalf of TLD in connection with the sale or purchase of any products or services (including whether to hire or contract with the person or business entity) to or from any person who is an Immediate Family Member or any business entity in which an Immediate Family Member has a substantial interest without prior written approval from the Ethics Committee.

如果员工本人或直系家属直接或间接成为任何 TLD 竞争对手、客户、供应商的独立承包商或顾问，必须立刻通知公司。没有商业道德委员会的书面批准，员工不得直接或间接地参与，以 TLD 名义与任何直系亲属或与直系亲属有重大利益关系的商业单位，做出关于出售或购买任何产品或服务（包括聘用或与签订合同）的重大决定。

- **Business with Former Employees**
- **与前任雇员的业务**

TLD will enter into a business arrangement with a former Employee, a company that employs a former Employee, or a company with which a former Employee has a significant ownership interest only if the arrangement is in TLD's best interest and in no way brings into question TLD's ethical standards. Business arrangements with former Employees must be approved in writing in advance by a member of the Ethics Committee, who will inform the other members thereafter.

只有在符合 TLD 最佳利益和 TLD 商业道德标准的情况下，TLD 才会与前雇员，前雇员现在任职的公司，或前雇员有重大所有者权益的公司建立业务关系。与前雇员的业务安排必须先得到商业道德委员会成员之一的书面批准，该成员事后须通知其它成员。

- **The Use of TLD Assets for Outside Interests**
- **为外界利益使用 TLD 资产**

You are prohibited from using TLD facilities, materials, information technology, equipment or any other resources other than in connection with the performance of your job duties and on behalf of TLD other than nominal/incidental use that is not in violation of the TLD's policy regarding electronic communications systems.

除了从事与工作职责相关的活动，以及不违反 TLD 有关电子通讯的政策，员工不得使用 TLD 设施、材料、信息技术、设备或其它资源。



- **Outside Financial Interests**
- **公司以外经济利益**

If yourself or any Immediate Family Member knowingly owns or envisage to acquire any financial interest in any TLD customer, supplier, vendor or competitor, you must inform immediately the Ethics Committee. Mutual fund investments and/or blind trusts, where investment decisions are not made under your specific direction, are not considered to “knowingly own a financial interest”, and are not in violation of this Code.

如果你本人或直系亲属在 TLD 的客户、供应商或竞争对手的单位蓄意持有或意图获取经济利益，你必须立即通知商业道德委员会。至于你本人无投资决策权的互惠基金投资和/或信托投资，不能视为“蓄意持有经济利益”，并不违反本守则。

The Code does not restrict you or your Immediate Family Members from owning 1% or less of stock in publicly-held companies.

本守则并不限制你或你的直系亲属拥有公开上市公司 1%或以下的股票。

- **Employment of Immediate Family Members of Employees**
- **聘用员工的直系家属**

TLD seeks to employ the most qualified candidates for every position and to encourage all Employees to seek advancement opportunities within TLD. An Employee's Immediate Family Member may be considered for employment by TLD if the individual possesses all of the qualifications for employment and as long as the employment of an Immediate Family Member does not create an actual conflict of interest or the appearance of a conflict of interest. An Immediate Family Member may not be hired, however, if the employment would create either a direct or indirect managerial relationship with an Immediate Family Member that could result in a Employee supervising or influencing the job evaluation, pay or benefits of their Immediate Family Member. Employees who marry or become members of the same household may continue employment as long as there is not a direct or indirect managerial relationship between the Employees.

TLD 努力为每个职位聘用最合格的候选人并鼓励所有员工在 TLD 寻求发展的机会。只要合乎聘用资格，而且该聘用不会产生实质或表面的利益冲突，TLD 可以考虑聘用员工的直系亲属。但是，当该聘用会导致受聘用人与其直系家属形成直接或间接的上下级关系，进而产生员工对其直系亲属进行工作监督，评估，决定其劳动报酬或其它福利时，该直系家属将不被聘用。至于员工之间结婚或成为同一家属成员的情况，只要不形成直接或间接的上下属关系，就可继续聘用。

- **Solicitation of TLD Employees**
- **关于游说 TLD 员工去其他公司**

You may not engage in the solicitation of another Employee to leave TLD for other employment.

不得游说 TLD 员工去其他公司就业。



CORPORATE ASSETS POLICY

公司资产政策

It is the policy of TLD that Employees are expected to protect the assets of the Company and use them efficiently to serve and promote the interests and reputation of the Company. Those assets include tangible assets and intangible assets, such as confidential information of the Company. No Employee should use or disclose at any time during or subsequent to employment or other service to the Company, without proper authority or mandate, confidential information obtained from any source in the course of the Company's business.

TLD 期望每位员工保护公司资产，并加以有效运用以提升公司利益及声誉。这些资产包括有形资产和无形资产，比如公司机密信息。在没有适当的权力或授权的情况下，任何员工都不应在聘用期内或期后，或在为公司提供其它服务期间或期后，使用或披露任何来自公司业务的机密信息。

In order to protect TLD's assets, no corporate funds or assets should be used for any unlawful purpose, or for any purpose not related to TLD's business, and no Employee should appropriate for his or her own use any TLD assets or make them available to other parties.

为保护 TLD 资产，所有公司资金或财产均不得用于非法或与 TLD 业务无关的任何用途。任何员工均不得将 TLD 资产据为己有或让第三者使用。

When dealing with suppliers and subcontractors, each Employee must protect, honestly and with integrity, the interests and assets of TLD.

与供应商和外包商合作时，每位员工都必须诚实、正直地保护 TLD 的利益和资产。

■ **Protecting Proprietary Information**

■ **保护公司信息**

You are responsible for protecting TLD's assets, including confidential information. You are required to act in such a manner as to prevent loss of proprietary information through either intentional misappropriation or inadvertent disclosure. Examples of confidential information include trade secrets, sensitive business information, technical data, and/or all other such matters regarding TLD, its customers, suppliers, vendors, distributors or other corporate partners and all non-public information about the Company's plans, earnings, financial and business forecasts, competitive bids, and personnel.

你有责任保护 TLD 资产，包括机密信息。公司要求每个员工防止泄露公司信息，无论是有意盗用或无意披露。机密信息包括商业秘密、敏感业务信息、技术数据，和/或其它与 TLD、TLD 客户、供应商、分销商或其它商业伙伴相关的信息，以及所有关于公司计划、盈收、财务与业务预测、竞标及人事等未公开的信息。



- **Safeguarding TLD Assets**

- **保护公司资产**

TLD assets and services should be used solely for TLD's legitimate business purposes. The misuse or unauthorized removal of TLD's property from TLD's facilities is prohibited.

TLD 资产和服务只可用于为 TLD 的合法商业用途，禁止滥用或擅自将 TLD 资产迁离 TLD 范围。

- **Trade Practices and Anti-Trust Compliance**

- **贸易惯例和反垄断法**

TLD is subject to laws commonly known as “trade practice” or “anti-trust” laws, which deal with agreements and practices that prevent such practices as price fixing, discriminatory pricing, certain tie-in sales. When conducting TLD business in a country, you are responsible for understanding the constraints imposed by local laws or customs in that country.

TLD 遵守通称为“贸易惯例”或“反垄断法”的法律，这些法律针对防止价格垄断，价格歧视或某些捆绑式交易。当 TLD 在某个国家开展业务，您有责任了解当地法律或海关所设的限制。

Certain discussions with competitors may be illegal under anti-trust laws. In contacts with competitors, you must not discuss product prices, terms of sales, customers, or allocation of marketplace.

根据反垄断法，与竞争对手讨论某些议题可能是违法的。在与竞争对手接触过程中，不应讨论产品价格，销售条款，客户或市场分配等相关议题。

If a competitor, trade association member, social contact, friend, or acquaintance employed or working for a TLD competitor raises any one of the above topics, in seriousness or jest, you should object and should refrain from discussing such matters.

如果某个竞争对手，行业协会会员，社交场合接触的人，朋友或为 TLD 竞争对手工作的熟人，无论是以严肃或开玩笑方式，提出上述议题之一，你应该表示反对，并应避免讨论这些议题。

- **Unfair Business Practices**

- **不公正的商业做法**

You should deal honestly, ethically and fairly with TLD's suppliers, vendors, customers, competitors and their Employees. Statements regarding TLD's products and services should not be untrue, misleading, deceptive or fraudulent.

与 TLD 的供应商、客户、竞争对手及其雇员交涉应当诚实、有道德和公正。关于 TLD 产品和服务的陈述不应不真实、误导、欺骗或讹诈。



You should not take unfair advantage of anyone through manipulation, concealment, abuse of privileged information, misrepresentation of material facts or any other unfair-dealing practice.

不得通过操纵、隐瞒、滥用特权信息，歪曲事实或其它不公正的做法获得对他人不公平的优势。

- **Dealing with Distributors and Resellers**
- **与分销商和经销商交涉**

Discussions with distributors or other independent resellers of TLD products may be illegal if there is collaboration or agreement on prices quoted to a customer, bid rigging, agreements not to compete or other similar practices.

与 TLD 产品分销商或其它独立经销商讨论某些议题可能是非法的，这些议题包括就给某客户的报价合作或达成协议，操纵投标，协议不相竞争或其它类似做法。

DIRECTORSHIPS POLICY

关于董事职位政策

It is the policy of TLD to restrict the holding by Employees of directorships in non-affiliated, for-profit organizations and to prohibit the acceptance by any Employee of such Directorships that would involve a conflict of interest with, or interfere with, the discharge of the Employee's duties to the Company. Any Employee may hold Directorships in non-affiliated, non-profit organizations, unless such Directorships would involve a conflict of interest with, or interfere with, the discharge of the Employee's duties to the Company, or obligate the Company to provide support to the non-affiliated, non-profit organizations. Employees may serve as Directors of affiliated companies and such service may be part of their normal work assignments.

TLD 严格限制员工在非 TLD 附属的牟利机构担任董事，并禁止员工接受会导致利益冲突，或影响员工履行 TLD 职责的董事职务。在不涉及利益冲突，不影响员工履行职责，公司不须提供支持的情况下，员工可在非 TLD 附属的牟利机构担任董事。员工可在 TLD 的附属公司担任董事，该职务可以视为其正常工作安排的一部份。

All directorships in publicly listed companies held by Employees are subject to receive an approval by the Alvest Supervisory Board.

员工在上市公司担任任何董事职务都需得到 Alvest 监督理事会的批准。

In all other cases, Directorships in non-affiliated, for-profit organizations are subject to review and approval by the Chief Executive Officer of TLD Group.

在其他所有情况下，员工在非 TLD 下属的，具有盈利性质的机构担任董事都需经 TLD 集团首席执行官的审批和批准。



DEALING WITH GOVERNMENTS

与政府部门交涉

- **Political activities**
- **政治活动**

TLD generally does not make political contributions in support of any party or candidate in any election, whether Federal, state, national, or local, except as stated in this Code. This Code does not prevent an Employee, acting on his/her own behalf, and who is representing him/herself, from participating in the political process. You shall not make any political contribution for TLD or use TLD's name, funds, property, equipment or services for the support of political parties, initiatives, committees or candidates without the prior approval of the TLD Group CEO. This includes any contribution of value. You may not direct, urge or require any other Employee to contribute to any political party, cause, organization or candidate. Lobbying activities or government contacts on behalf of TLD, other than sales activities, should be coordinated with the Chief Executive Officer of TLD Group.

除在本守则说明的之外，无论是联邦、州、国家或地方的选举，TLD 通常不作政治捐献，支持任何党派或候选人。本守则并不阻止员工，以自己的名义和委派代表参与政治活动。未经 TLD 集团首席执行官的批准，不得以 TLD 名义作政治捐献，或使用 TLD 的名称、资金、财产、设备或服务去支持某政党、发起人、委员会或候选人，包括任何有价值的贡献。你不引导，驱使或要求任何其它员工捐献给任何政党、主张、组织或候选人。除销售活动外，以 TLD 名义进行游说活动或接触政府，需与 TLD 集团首席执行官协调进行。

TLD's relationship with governmental agencies and their officials and personnel in each country where TLD conducts business should be maintained (i) in accordance with high ethical standards, (ii) in compliance with applicable legal requirements, and (iii) such that a public disclosure of such relationship would not be expected to impugn or jeopardize TLD's integrity or reputation.

TLD 在有经营业务的国家与当地政府部门和官方人员维持关系的原则是：（一）按照严格的商业道德标准，（二）遵循适用的法律规定，和（三）公开此类关系不会令人怀疑或危害 TLD 的诚实、公正或声誉。

TLD may authorize certain Employees or professional representatives to publicly support or oppose any existing or proposed legislation, regulations or interpretation of law at the local, state or federal level. You do not, in the course of your employment or in any other manner that would imply such action is on behalf of TLD, have the authority to advocate for or against any existing or proposed legislation, regulation or interpretation of law unless expressly authorized by the Chief Executive Officer of TLD Group.

对于在地方、州或联邦各层面的现有或拟议的立法议案、法规或释法，TLD 可授权某些雇员或专业代表公开支持或反对。这类支持或反对，除非得到 TLD 集团首席执行官的明确授权，员工无权在受聘期间提出，亦不得以任何方式暗示系代表 TLD 提出。



- **Anticorruption laws**
- **反商业贿赂法**

We comply with the anticorruption treaties and laws of the countries in which we do business, including the U.S. Foreign Corrupt Practices Act (FCPA). We will not directly or indirectly offer or make a corrupt or improper payment to government officials, including employees of government-owned or government-controlled enterprises. These requirements apply both to TLD Employees and agents, no matter where they are doing business. When we are authorized to engage agents, we make sure that they are reputable and require them to agree in writing to TLD's standards in this area.

TLD 遵守开展业务所在国家的反商业贿赂条约和法律，包括美国的反海外行贿法。我们不会直接或间接贿赂或做出不正当付款给政府官员，包括政府拥有或控制的企业的员工。这些规定适用于 TLD 员工和代理，无论他们在何处开展业务。当我们被授权雇用代理机构，我们要确保他们具有良好的声誉，并要求他们书面同意 TLD 在该区域的标准。

- **Facilitating payments**
- **疏通费**

TLD prohibits making "facilitating payments" or "grease payments" to expedite a routine administrative action either directly or indirectly through a third party. No gift or entertainment should ever be offered or accepted by you or any of your Immediate Family Members unless it (i) is consistent with customary business practices, (ii) is not excessive in value, (iii) cannot be construed as a bribe or payoff, and (iv) does not violate any law or regulation.

TLD 禁止直接或通过第三者间接支付“疏通费”以加快例行行政手续。员工或其直系家属不得提供或接受任何馈赠或招待，除非（一）合乎商业习俗、惯例，（二）价值不高，（三）不会被认为是贿赂或回扣，以及（四）不违反任何法律或法规。

Notwithstanding the foregoing, commercial business entertainment and transportation that is reasonable in nature, frequency, and cost is permitted. Reasonable business entertainment or transportation includes, without limitation, a lunch, dinner, or occasional sport, or cultural event; gifts of nominal value; entertainment at TLD or other authorized facilities; or authorized and reasonable transportation in TLD's or other vehicles. In addition, reasonable business entertainment covers traditional promotional events sponsored by TLD.

尽管有上述规定，性质、频率、成本合理的商业娱乐和交通安排是允许的。合理的商业娱乐和交通安排包括但不限于，午餐、晚餐、偶尔的运动或文化活动、象征性礼品、在 TLD 或其它核准设施的招待，或经核准使用 TLD 车辆或其它交通工具的合理交通安排。此外，合理的商业娱乐也包括 TLD 赞助的传统推广活动。

- **Anti-money laundering and anti-terrorism**
- **反洗钱和反恐怖主义**

Money laundering is a process designed to conceal an illegal source of money to make it appear legitimate. TLD will not directly or indirectly participate in such practices. For example, the purchase of our products or services could be used to disguise illegally gained funds or support terrorism. To avoid becoming involved in such situations, TLD businesses



are required to perform and document to all possible extent due diligence of parties involved in financial transactions.

洗钱是将非法所得演变成看似合法的过程。TLD 不会直接或间接参与如此活动，例如，购买我们的产品或服务可能是用来掩盖非法所得或支持恐怖主义。为了避免卷入这种情况，TLD 对财务交易的参与方必定进行最大可能程度的稽核并加以记录。

- **Import and export**
- **进出口**

When importing or exporting products, services, information or technology, we comply with all applicable national laws, regulations and restrictions, including those of the United States. When we travel internationally on company business, we are subject to laws governing what we import and export, including items we carry with us. TLD Employees are responsible for knowing the laws that pertain to them and for checking with their import/export compliance manager when in doubt.

在进出口产品，服务，信息和技术方面，我们遵守所有适用的国家法律、法规和限制，包括美国。出差国外时，我们要遵守规管进出口的相关法律，包括随身携带的行李。TLD 员工有责任知道相关法律，当有疑问时，应与负责进出口事宜的经理确认。

COMMUNICATION AND ACKNOWLEDGMENT OF THE CODE

此守则的交流与承认

The Code is available on the TLD Intranet Site, which is one of the TLD primary internal management and information data bases.

此守则公布在 TLD 内联网站上。TLD 内联网站是 TLD 用于内部管理和信息发布的主要数据库之一。

The Chief Executive Officer of each TLD Company shall be responsible for duly communicating the Code to all Employees concerned, in the most efficient manner, informing them of any change, and regularly making sure that these Employees are informed about the content of the Code and understand it.

每个 TLD 公司的首席执行官应负责以最有效的方式与相关员工沟通此守则，如有改动通知他们，并定期落实，以确保员工知道并理解守则的内容。

The categories of Employees concerned shall include, but is not limited to, all Directors, Officers, managers, sales employees, purchasing agents, and each Employee who is engaged in the performance of a Government Contract.

相关员工的类别包括但不限于所有董事，高级职员，经理，销售人员，采购代理和每一个参与政府合同的雇员。



WAIVER OF THE CODE

本守则豁免处理

The Ethics Committee should be contacted to: (i) request a waiver of the Code; (ii) report a suspected past or present violation of the Code; or (iii) report a suspected past or present actual or potential conflict of interest. Waivers of certain provisions of this Code are possible with approval from the Ethics Committee.

发生以下情况时应与商业道德委员会联系：（一）要求守则的豁免；（二）举报过去或现在违反该守则的可疑行为；或（三）举报过去或现在有实际或潜在利益冲突的可疑行为。经商业道德委员会批准，本守则的某些条款是可能豁免的。

If you believe a waiver is appropriate in your case you must seek approval by contacting the Ethics Committee via email at ethics.Committee@tld-group.com. The Ethics Committee will review each waiver request and take such action that it believes is appropriate under the circumstances. You should be prepared to disclose all pertinent facts and circumstances, respond to inquiries for additional information, explain why the waiver is necessary, appropriate, or in TLD's best interests, and be willing to comply with any procedures that may be required to protect TLD in connection with a waiver. The Ethics Committee will retain written records of its actions.

如果你认为你的个案是可以豁免的，你必须通过发邮件到 ethics.Committee@tld-group.com 联系商业道德委员会寻求批准。商业道德委员会将审查每个豁免请求，并因应当时情况采取适当的行动。你应有准备须要披露所有相关事实和情况，回答要求更多资料的提问，解释为何豁免是必要的、适当的、或符合 TLD 最佳利益的，并愿意遵守任何与豁免相关的，为保护 TLD 而可能需要的程序。商业道德委员会将保留其有关处理的书面记录。

Each disclosable circumstance, including all previously granted waivers of the Code, and all disclosures in which the Ethics Committee decided that no waiver of the Code was necessary, must be disclosed to the Ethics Committee annually for reconsideration, and you must indicate whether and to what extent relevant circumstances may have changed. The Ethics Committee may alter its treatment of any waiver request or disclosure at its discretion.

每个寻求豁免的个案，包括曾经获得豁免的，和商业道德委员会决定不豁免的情况，必须每年汇报给商业道德委员会重新考虑。你必须说明相关情况是否已经改变了，和在何种程度上的改变。商业道德委员会可根据其见解改变对豁免申请或披露情况的处理。

Any issue under the Code involving a member of the Ethics Committee will be examined by the other members of the Ethics Committee, which will report their findings to the Alvest Supervisory Board. Any waiver of this Code for members of the Ethics Committee may be made only by the Alvest Supervisory Board.

商业道德委员会成员涉及违反此守则的个案将由委员会的其它成员调查，并将其调查结果汇报给 Alvest 监督理事会。商业道德委员会成员寻求守则豁免的，则由 Alvest 监督理事会决定。



Failure to read or acknowledge this Code does not exempt you from your responsibility to comply with the Code or with applicable laws and regulations.

没有阅读或接受本守则并不免除你遵守本守则或适用法律法规的责任。

COMPLIANCE PROCEDURE AND OPEN DOOR COMMUNICATION

关于流程遵守和开放式交流

TLD encourages Employees to ask questions, voice concerns, and make appropriate suggestions regarding the business practices of the Company. Employees are to report promptly to management suspected violations of law, of this Code and the Company's procedures and policies, and the Company internal controls, and any significant overpayment of a Government Contract, so that management can take appropriate corrective action. The Company promptly investigates reports of suspected violations of law, policies, and internal control procedure.

TLD 鼓励员工就公司的业务提出问题，表达他们的顾虑，以及提出适当的建议。员工应及时向管理层汇报涉嫌违反法律、本守则、公司章程与政策、和公司内部控制的行为，以及任何有关政府合同的重大超额给付，使管理层可以采取适当的纠正措施。公司会立即就举报进行调查。

Management is ultimately responsible for the investigation of and appropriate response to reports of suspected violations of law, the Code, and policies and internal control procedures. Finance & Internal Audit Department has primary responsibility for investigating violations of the Company's internal control, with assistance from others, depending on the subject matter of the inquiry. The persons who investigate suspected violations are expected to exercise independent and objective judgment.

管理层最终负责对上述违例行为的举报展开调查和采取适当回应。对违反公司内部控制的行为，则根据所调查的事项，在相关部门的协助下，由财务及内部审计部门负主要的调查责任。负责调查的人员应当做出独立和客观的判断。

Normally, an Employee should discuss such matters with the Employee's immediate supervisor. Each supervisor is expected to be available to subordinates for that purpose. If an Employee is dissatisfied following review with the Employee's immediate supervisor, that Employee is encouraged to request a further review by his upper supervisor, in the presence of the supervisor or otherwise. Reviews should continue to the level of management appropriate to resolve the issue.

员工应与其直接主管讨论此类情况，各主管应当为此安排时间。如果员工不满意与其直接主管讨论的结果，公司鼓励员工要求与再上一级主管进一步复查，不论其直接主管在场与否。审查应延续到可适当解决问题的管理层为止。



Depending on the subject matter of the question, concern, or suggestion, each Employee has access to alternative channels of communication, for example, the Finance & Control Department of the TLD entity that employs this Employee, the TLD Group Finance and Internal Audit Department, the Human Resources Department and the Safety Health and Environment Department of the TLD entity that employs this Employee, the Ethics Committee.

视乎问题、顾虑、或建议的内容，员工可以接触不同的沟通渠道。例如，该员工所在 TLD 公司的财务及控制部、人力资源部、安全健康及环境部，TLD 集团财务及内部审计部门，和商业道德委员会。

Violations of law, the Code, and the policies and the Group internal controls may be reported on a confidential basis by contacting your Group entity local Ethics Officer or directly the Secretary of Ethics Committee.

Secretary of Ethics Committee
TLD Group
Parc Tertiaire Silic
21, rue du Jura – BP 10525
94633 RUNGIS Cedex
France

违反法律、本守则、政策与集团内部控制的行为可以保密的方式报告当地的商业道德执行官或直接通过下列地址联系商业道德委员会秘书。

Secretary of Ethics Committee
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In particular, suspected violations of law or the Company's policies involving a Director or an Officer, as well as any concern regarding questionable accounting or auditing matters, should be referred directly to the secretary of the Ethics Committee and the TLD Group CEO.

特别是，对于董事或高级职员涉嫌违反法律或公司政策的情况，以及任何可疑的会计或审计事宜，应当直接汇报予商业道德委员会秘书和 TLD 集团首席执行官。

Ultimately, Employees may also address communications to the members of the Alvest Supervisory Board, individually or as a group, by writing them at TLD Group, or such other addresses as the Company may designate and publish from time to time.

最后，员工也可单独或集体，写信到 TLD 集团或公司日后指定和公布的其它地址，连络 Alvest 监督理事会成员。

Employees wishing to make complaints without identifying themselves may do so by writing anonymously to the Secretary of the Ethics Committee.



员工如果举报时不想透露身份，可写匿名信给商业道德委员会秘书。

All persons responding to Employee's questions, concerns, complaints, and suggestions are expected to use appropriate discretion regarding anonymity and confidentiality, although the preservation of anonymity and confidentiality may or may not be practical, depending on the circumstances. For example, investigations of significant complaints typically necessitate revealing to others information about the complaint and complainant. Similarly, disclosure can result from government investigations and litigation.

尽管维护匿名和保密在某些情况下未必可行，所有人在回答员工问题、顾虑、投诉和建议时应当谨慎。例如，对于重大投诉的调查通常需要向他人透露有关投诉和被投诉人的资料。涉及政府调查和法律诉讼时，也同样需要透露资料。

No action may be taken or threatened against any Employee for asking questions, voicing concerns, or making complaints or suggestions in conformity with the procedures described above, unless the Employee acts with willful disregard of the truth. Violations of this Code may be reported openly or anonymously without fear of retaliation. TLD will not discipline, discriminate against or retaliate against any Employee or other person who reports such conduct in good faith, whether or not such information is ultimately proven to be correct, or who cooperates in any investigation or inquiry regarding such conduct. Any Employee who receives a report of a violation of this Code must immediately inform the Ethics Committee.

除非员工有意无视事实，只要员工按照上述程序提出问题、表达顾虑、或做出投诉或建议，TLD 绝不会采取任何针对或威胁该员工的行动。员工不需要为公开或匿名举报违反本守则的行为而担心受到报复。不论这些信息最终被证明正确与否，TLD 绝不会处分、歧视或报复诚意举报的员工或其它人，或参与调查或聆讯的人。

Failure to behave honestly and failure to comply with the law, TLD and the Company's policies, and TLD and the Company's internal control may result in disciplinary action.

行为不诚实，不遵守法律，公司政策和内部控制可能会导致处分。

No one in TLD has the authority to make exceptions or grant waivers to TLD's foundations policies. It is recognized that there will be questions about the application of the policies to specific activities and situations. In cases of doubt, Directors, Officers, and Employees are expected to seek clarification and guidance. In those instances where the Company, after review, approves an activity or situation, TLD is not granting an exception or waiver but is determining that there is no policy violation. If TLD determines that there is or would be a policy violation, appropriate action is taken.

在 TLD，对于 TLD 基本政策，没有人有权可以例外或被赋予豁免。关于该政策是否适用于具体的活动和情况可能会有疑问。如有疑问，董事，高级职员和员工应当寻求澄清和指导。当 TLD 经审查后批准某一活动或情况，并不意味着这是一个例外或豁免，而是确定没有违反政策。如果确定有或可能会有违反政策的行为，TLD 会采取适当行动。



While it is TLD's desire to address matters internally, nothing in this Code should discourage any Employee from reporting any perceived illegal activity (including any violation of securities laws, anti-trust laws, environmental laws or any law of all countries, in particular, Federal, National, state and local authority) to the appropriate authority.

虽然 TLD 希望通过内部解决问题，本守则并不阻止员工向合适的当局举报任何非法行为（包括违反证券法，反垄断法，环境法或任何国家的任何法律，特别是联邦，国家，州和地方当局的法律。

Update: January 7, 2013

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